

25STCV14827 25STCV14827

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-07-06

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DEMURRER

WITH MOTION TO STRIKE

The Court tenders

the following tentative decision in the matter Leslie Ortiz v. Edwin Yap, et al., Los Angeles County Superior Court case number 25STCV14827, set for hearing on July 6, 2026. Edwin and Myrna Yap (collectively, Defendants) demur to Leslie Ortiz's (Plaintiff) third amended complaint (TAC). Defendants also move to strike portions of the TAC. Defendants' demurrer is overruled. Their motion to strike is denied.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Guclimane Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co.

(2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank

v. Kirwan (1985) 39 Cal.3d 311,

318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment

Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is

properly sustained only when the complaint, liberally construed, fails to state

facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

When a

demurrer is sustained or a motion to strike granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff

“has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendants demur to Plaintiff's entire TAC

on the grounds that it is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) Defendants also argue that all Plaintiff has not pled sufficient facts to state any cause of action. (Id., § 430.10, subd. (e).) The Court will address whether

the TAC is uncertain before addressing each cause of action for which Defendants have submitted an argument individually. The Court does not address those causes of action not mentioned by Defendants, namely the third, fifth, sixth, seventh, ninth, and tenth.

Plaintiff's complaint is not uncertain as pled against Defendants.

Defendants once again demur to Plaintiff's TAC on the grounds that it is uncertain. Demurrers for uncertainty are disfavored. Courts are to only grant them if the pleading is so incomprehensible that a defendant cannot respond, considering that ambiguities can be clarified in discovery. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) Complaints must contain a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) Additionally, each cause of action should be numbered and identify the parties against whom it is stated. (Rules of Court, rule 2.112.) The Court has previously sustained a demurrer to Plaintiff's complaint based on uncertainty.

Here, Plaintiff has corrected the deficiencies in his pleading that made it uncertain. Each cause of action is separately numbered. The Court finds Plaintiff's complaint to be sufficiently understandable based on its diminished length and more refined factual descriptions and organization. Thus, demurrer to the entire TAC based on uncertainty is not appropriate. Accordingly, Defendants' demurrer is overruled on this basis.

Plaintiff has pled sufficient facts to state his cause of action for fraud.

Defendants argue that Plaintiff has not pled sufficient facts to constitute his fraud cause of action. (Code Civ. Proc., § 430.10, subd. (e).) To plead fraud, a plaintiff must show: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

Here, Plaintiff alleges that Defendants

drafted and executed an agreement containing material misrepresentations intended to circumvent California tenant protections. (TAC ¶ 40.) Specifically, Plaintiff alleges that Defendants misrepresented they were a tenant, that it was a temporary rental while they were abroad, their identities, and the rules of tenancy. (Ibid.) Plaintiff alleges that Defendants knew their representations to be false and that they intended Plaintiff to rely on those terms so that he would vacate the premises. (Id. ¶ 42.) Plaintiff alleges that he justifiably relied on the word of the Defendants as property managers. (Id. ¶ 43.) And he alleges that he suffered damages by being deprived of tenancy and forced into homelessness. (Id. ¶ 46.) Thus, Plaintiff has pled facts satisfying each element of a fraud cause of action.

Defendants also argue that Plaintiff's cause of action is barred by the statute of limitations. The statute of limitations for fraud is 3 years. (Code Civ. Proc., § 338, subd. (d).) The cause of action is not deemed to have accrued "until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Ibid.) It is the Plaintiff's burden to establish their own late discovery and inability to discover the relevant facts earlier. (Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 177–178.) Plaintiff alleges that he only discovered this fraud in July of 2024, after the 2021 unlawful detainer proceedings. (Id. ¶ 47.) Based on Plaintiff's other allegations of concealment, it is reasonable that he did not discover the alleged fraud until that time. Thus, the discovery rule applies and the statute of limitations does not defeat Plaintiff's claims.

Even if the discovery rule did not apply, Plaintiff also properly alleges tolling due to legal incapacity. "If a person entitled to bring an action . . . is, at the time the cause of action accrued . . . lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action." (Code Civ. Proc., § 352, subd. (a).) Under section 352, a plaintiff's claims are tolled if they were insane when the cause of action accrued and tolling continues until the plaintiff is restored to sanity. (Feeley v. Southern Pacific Transportation Co. (1991) 234 Cal.App.3d 949, 952.) Insanity means "a condition of mental derangement which renders the sufferer incapable of caring for his property or transacting business, or understanding the nature or effects of his acts." (Hsu v. Mt. Zion Hospital (1968) 259 Cal.App.2d 562, 571.) Here, Plaintiff alleges that he suffered a catastrophic mental health crisis rendering him legally insane from November 1, 2021, through May

20, 2025. (TAC ¶¶ 2–3.) Thus, Plaintiff's fraud cause of action was tolled during this period under section 352 as well. Accordingly, Defendants' demurrer is overruled as to Plaintiff's fourth cause of action.

Plaintiff has pled sufficient facts to state his cause of action for breach of the implied covenant of quiet enjoyment.

Defendants argue that Plaintiff has not pled sufficient facts to constitute his eighth cause of action for breach of the implied covenant of quiet enjoyment. (Code Civ. Proc., § 430.10, subd. (e).) “[E]very lease includes an implied covenant of quiet possession and enjoyment.” (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1299 (Erlach); Civ. Code, § 1927.) The covenant is breached upon the tenant's actual or constructive eviction. (Erlach, supra, at p. 1299.) “Any interference by the landlord that deprives the tenant of the beneficial enjoyment of the premises or renders the premises unfit for the purposes for which they are let amounts to a constructive eviction if the tenant so elects and vacates within a reasonable time.” (Id. at pp. 1299–1300.)

Here, Plaintiff alleges that he entered a 12-month lease on July 19, 2020. (TAC ¶ 5.) He further alleges that he vacated the premises because of interference by Defendants. (Id. ¶ 72.) Specifically, Plaintiff alleges that Defendants interfered by shutting off his utilities 11 times rendering the home unusable, frequently conducting unnecessary and unannounced inspections, disabling heating and air conditioning during temperature extremes, and harassing and intimidating him. (Id. ¶ 76.) Such alleged interference is substantial and deprive Plaintiff of the beneficial enjoyment of the premises. (See Marchese v. Standard Realty & Development Co. (1977) 74 Cal.App.3d 142, 146 [holding that interference with water supply is an actionable breach]; Public Employees' Retirement System v. Winston (1989) 209 Cal.App.3d 205, 208 [holding that termination or reduction of services due under the lease is a breach].) Thus, Plaintiff has pled sufficient facts to state a cause of action for breach of the implied covenant of quiet enjoyment. Accordingly, Defendants' demurrer to Plaintiff's eighth cause of action is overruled as well.

Plaintiff has pled sufficient facts to state causes of action for retaliatory eviction and violation of the Tenant

Protection Act of 2019.

Defendant argues that Plaintiff has not pled sufficient facts to constitute his causes of action for retaliatory eviction or violation of the Tenant Protection Act (TPA). With respect to retaliatory eviction, a lessor may not “recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services” within 180 days of a lessee filing a written complaint in good faith with an appropriate agency of which the lessor has notice, if such actions are retaliatory and the lessee is not in default as to the payment of rent. (Civ. Code, § 1942.5, subd. (a).) Here, Plaintiff alleges that Defendants unlawfully turned off his electricity on May 26, 2021. (TAC ¶ 21.) Plaintiff sought assistance from the local Sheriff. (Ibid.) Defendants served a 30 day notice to quit on June 29. (Id. ¶ 22.) Plaintiff alleges that Defendants’ retaliatory intent is evidenced through hostile texts they sent. (Ibid.) Thus, Plaintiff has pled sufficient facts showing that he made a protected complaint under section 1942.5 and was evicted within 180 days in a retaliatory manner. Accordingly, Defendants’ demurrer to Plaintiff’s first cause of action is overruled as well.

With respect to the TPA, “after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy.” (Civ. Code, § 1946.2, subd. (a).) Plaintiff alleges that the premises was subject to the TPA. (TAC ¶ 27.) Plaintiff further alleges that Defendants’ purported just cause for eviction, withdrawal of the property from the rental market, was fraudulent. (Id. ¶ 30.) Thus, Plaintiff alleges that Defendants evicted him without good cause in violation of the TPA and that he suffered damages as a result. (Id. ¶¶ 30–32.) Accordingly, Defendants’ demurrer to Plaintiff’s second cause of action is also overruled.

Plaintiff has pled sufficient facts to state a cause of action for intentional infliction of emotional distress.

Defendants argue that Plaintiff has not pled sufficient facts to constitute a cause of action for intentional infliction of emotional distress. A claim for intentional infliction of emotional distress requires a showing of “(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of

the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Huntingdon Life Sciences v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.) A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' [citation] And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.' [citation]." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050–1051.) This conduct must be alleged with specificity to avoid demurrer. (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 161.)

Here, Plaintiff alleges that Defendants' interference with his enjoyment of the property and retaliatory eviction constitute outrageous conduct and that the power imbalance between the parties increases the outrageousness of Defendants' conduct. (TAC ¶ 103.) Indeed, Defendants' actions as alleged involved intentionally harming Plaintiff by disrupting utilities and services and harassing and intimidating him before evicting him as retaliation for his complaints to the Sheriff. (Id. ¶¶ 22, 76.) And conduct is outrageous where a defendant "abuses a relation or position which gives him power to damage the plaintiff's interest. (McDaniel v. Gile (1991) 230 Cal.App.3d 363, 372.) Plaintiff additionally alleges that Defendants intended to cause him emotional distress as evidenced by their hostile messages to him. (TAC ¶ 104.) Finally, Plaintiff alleges that he suffered severe emotional distress as a result of the conduct. (Id. ¶¶ 109–110.) Thus, Plaintiff has pled sufficient facts to state a cause of action for intentional infliction of emotional distress. Accordingly, Defendants' demurrer is overruled as to Plaintiff's eleventh cause of action as well.

Plaintiff's claims are not barred by res judicata as pled.

Lastly, Defendant argues that Plaintiff's claims are barred by the preclusive effect of a prior unlawful detainer proceeding. Claims arising from the same primary rights implicated in that action, and issues actually litigated and necessarily decided in that action, may be barred by the doctrines of res judicata and collateral estoppel, respectively. (See Murphy v. Murphy (2008) 164 Cal.App.4th 376, 401; Noble v. Draper (2008) 160 Cal.App.4th 1, 11.) "However, if a judgment is obtained by means of extrinsic fraud . . . it is not entitled to the protection

afforded by this doctrine and equitable relief will be allowed.” (McHugh v. Howard (1958) 165 Cal.App.2d 169, 175.) Fraud is extrinsic when it deprives a party the opportunity to present their case, such as when they have been kept in ignorance of the proceeding or prevented from participating in it. (Ibid.) This is distinguished from intrinsic fraud, such as false testimony at trial. (Buesa v. City of Los Angeles (2009) 177 Cal.App.4th 1537, 1546.)

Here, Plaintiff alleges fraud on the part of Defendants in that they (1) falsely testified that they were taking the property off the rental market and (2) prevented Plaintiff from receiving his mail. (TAC ¶ 16.) Defendants’ alleged false testimony constitutes intrinsic fraud and has no bearing on the preclusive effect of the unlawful detainer judgment. However, Defendants’ alleged intentional prevention of Plaintiff from receiving mail throughout the proceeding so that he could not receive notice of hearings constitutes extrinsic fraud. (Id. ¶ 14.) Thus, Plaintiff has alleged sufficient facts to call the preclusive effect of the prior judgment into question. Accordingly, Defendants’ demurrer is overruled on this ground as well.

Plaintiff has properly pled a claim for punitive damages.

Defendants move to strike Plaintiff’s prayer for punitive damages and all paragraphs referencing punitive damages in the complaint as irrelevant and improper matters within his pleading. (Code Civ. Proc., § 436, subd. (a).) A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined as conduct intended to injure the plaintiff or despicable conduct by a defendant acting with a willful and conscious disregard of the rights and safety of others. (Id., § 3294, subd. (c)(1).) Oppression means despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of their rights. (Id., § 3294, subd. (c)(2).) And fraud refers to intentional misrepresentations or concealment of a material fact known to the defendant. (Id., § 3294, subd. (c)(3).)

A plaintiff attempting to prove malice or oppression must offer clear and convincing evidence of despicable conduct. (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328 (Mock).) This refers to conduct “so vile, base, contemptible, miserable, wretched or

loathsome that it would be looked down upon and despised by ordinary decent people.” (Id. at p. 331.) A claim for punitive damages is insufficient where it lacks a factual assertion supporting the conclusion that a party acted with oppression, malice, or fraud. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Here, Plaintiff alleges that Defendants engaged in fraudulent conduct supporting a punitive damages claim. (TAC ¶¶ 30–32.) Specifically, Plaintiff alleges that Defendants perjured themselves in the prior unlawful detainer proceeding and intentionally prevented Plaintiff from receiving his mail during that action, preventing him from properly defending himself. (Id. ¶¶ 14–16.) This constitutes fraudulent conduct and supports a punitive damages claim under section 3294, subdivision (c)(3). This does not even take into account Plaintiff’s additional allegations of oppressive conduct by Defendants. Thus, Defendants’ motion to strike on this ground is denied.

Defendants additionally move to strike various allegations as inflammatory, argumentative, and improper matters meant to sensationalize the pleading. (Code Civ. Proc., § 436, subd. (a).) The Court does not find the relevant allegations improper, as they describe Defendants’ alleged conduct. Additionally, the allegations do not render the TAC ambiguous or unintelligible. Accordingly, Defendants’ motion to strike is denied.

Conclusion:

Defendants’ demurrer is overruled as to Plaintiff’s entire complaint and their motion to strike is denied. 30 days to answer.